

And for that many Subject of this Realme, being neither Merchants nor their Factors nor Apprentices Souldiers nor Mariners, are of late gone beyond the Seas without Licence, and are not as yet returned; Be it further enacted by the authority of this present Parliament, That if any of the said persons so gone beyond the Seas without Licence, which are not yet returned, shall not within six monethes next after their returne into this Realme, then being of the age of eighteen years or more, take the Oath above specified before some Justice of Peace of the County Libertie or Limit where such person shall inhabit or remaine, that then everie such Offendor shall take no benefite by any Oathes Conuenance Decent Devise or otherwise, of or to any Landes Tenement Hereditament Goodes or Chateles, untill he or they being of the said age of eighteen yeares or above, take the said Oath; and that likewise in the same tyme the next of Kin to the person so offending, which shalbe no Popish Recusant, shall have and enjoy the said Landes Tenement Hereditament Goodes and Chateles soe given conveyed descended or devined, untill such tyme as the person so offending shall conforme himselfe and take the aforesaid Oath, and receive the said Sacrament of the Larden Supper; and after such conforming taking of the said Oathes and receiving of the said Sacrament, he or they that shall have so received the Oath of the said Landes Tenement Hereditament Goodes and Chateles, shall make account of the Oath so received, and in reasonable tyme make payment thereof, and of the value of such Goodes and Chateles, to such person as shall so conforme hym or herselfe as aforesaid.

XII.
Persons Absent
without Licence
shall not take
Landes or Goodes by
Oath, Devise, &c.
untill they take
the Oath of
Allegiance, &c.

And be it further enacted by the authority of this present Parliament, That everie person or persons that is or shall be a Popish Recusant convict, during the tyme that he shalbe or remaine a Recusant, shall from and after the end of this present Session of Parliament be utterly disabled to present to any Benefice, with Cure or without Cure, Prebend or any other Ecclesiastical Living, or to collate or nominate to any Freechole Hospital or Donative what-so-ever, and from the beginning of this present Session of Parliament shall likewise be disabled to grant any avoidance to any Benefice Prebend or other Ecclesiastical Living; and that the Chancellours and Scholars of the University of Oxeford, soe often as any of them shalbe void, shall have the Presentation Nomination Collation and Donation of and to everie such Benefice Prebend or Ecclesiastical Living, Schoole Hospital and Donative, sett lying and being in the Countie of Oxford Kent Middlesex Suffes Surrey Hampshire Berkshire Buckinghamshire Gloucestershire Worcestershire Staffordshire Warwickshire Wiltshire Shropshire Devonshire Cornwall Dorsetshire Herefordshire Northamptonshire Pembrokeshire Cardiganshire Brecknockshire Monmouthshire Cardiganshire Montgomeryshire the Citty of London, and in every Citty and Towne being a Countie of it selfe, lying and being within any of the Limits or precinct of any of the Countie aforesaid, or in or within any of them, as shall happen to be void, during such tyme as the Patron thereof shalbe and remaine a Recusant convict as aforesaid: And that the Chancellor and Scholars of the University of Cambridge shall have the Presentation Nomination Collation and Donation of and to everie such Benefice Prebend or Ecclesiastical Living Schoole Hospital and Donative, sett lying and being in the Countie of Essex Hertfordshire Bedfordshire Cambridgeshire Huntingdonshire Suffolke Norfolk Lincolnshire Rutlandshire Leicestershire Derbyshire Nottinghamshire Shropshire Cheshire Lancashire Yorkshire the Countie of Durham Northumberland Cumberland Westmorland Radnorshire Denbighshire Flintshire Carnarvonshire Anglesey Merionethshire Glamorganshire, and in every Citty and Towne being a Countie of itselfe, lying within any of the Limits or precinct of any of the Countie last before mentioned, or in or within any of them, as shall happen to be void, during such tyme as the Patron thereof shall be and remaine a Recusant convict as aforesaid: Provided that neither of the said Chancellours and Scholars of either the said Universities shall present or nominate to any Benefice with Cure Prebend or other Ecclesiastical Living, any such person as shall then have any other Benefice with Cure of Soules; And if any such Presentation or Nomination shalbe had or made of any such person soe beneficed, the said Presentation or Nomination shall be utterly void; Any thing in this Acte to the contrary notwithstanding.

XIII.
Popish Recusants
convict disabled
from presenting
to Benefices;
which shall be
supplied by the
Two Universities.

Proviso against
Benefices.

Moreover, Because Recusant convict are not thought meete to be Executors or Administrators to any person or persons whatsoever, nor to have the Education of their owne Children, much lesse of the Children of any other of the King's Subject, nor to have the Marriage of them; Be it therefore enacted by the Authority aforesaid, That such Recusant convicted, or which shalbe convicted at the tyme of the Death of any Testator, or at the tyme of the granting of any Administration, shalbe disabled to be Executor or Administrator by force of any Testament hereafter to be made, or Letters of Administration hereafter to be granted, nor shall have the Custodie of any Child as Guardian in Chivalry Guardian in Socage or Guardian in Nurture of any Landes Tenement or Hereditament, being Freehold or Copyhold, but shall be adjudged disabled to have any such Wardship or Custodie of any such Child or of the said Landes Tenement or Hereditament, being Freehold or Copyhold as aforesaid; And that for the better Education & Preservation of the said Children and of their Estates, the next of the kynne to such Child or Children to whom the said Landes Tenement or Hereditament of such Child or Children cannot lawfully descend, who shall usually resort to some Church or Chappell and there hear Divine Service and receive the Holy Sacrament of the Larden Supper threes in the yeare next before, according to the Lawes of this Realme, shall have the Custodie and Education of the same Child and of his said Landes Tenement being holden in Knight's Service untill the full Age of the said Ward of one and twenty yeares; And of his said Landes Tenement and Hereditament being holden in Socage, as a Guardian in Socage; And of the said Landes Tenement and Hereditament holden by Cotte or Cotte Rote of any Manour, soe long as the Custome of the said Manour shall permit and allowe the same, and in every of the said cases shall yield an Account of the Oath thereof to the said Wards as the case shall require: And that if at any tyme hereafter any of the Wards of the King's Majestie or of any other shalbe granted or sold to any Popish Recusant convict, such grant or sale shall be utterly void and of none effect.

XIV.
Recusants convict
shall not be
Executors,
Administrators, &c.

Next of Kin,
qualified and not
recusant, shall be
Guardians.

The King's
Wards shall not
be granted to
Popish Recusants.

XV.
Popish Minstres,
the shall not be
imported or
planted; Penalty,
one mark.

Justices of Peace
may search for,
and seize and
destroy, Popish
Books, Bibles, &c.

And be it further enacted by the Authority of this present Parliament, That no person or persons shall bring from beyond the Seas, nor shall print sell or buy any Popish Prymers Ladies Psalters Manuals Romish Popish Catechismes Minstres Breviaries Portals Legendes and Lives of Saintes, conteyning superstitious matter, printed or written in any Language whatsoever, nor any other superstitious Bookes printed or written in the English Tongue, upon paine of Forfeiture of Forty Shillinges for every such Booke; One third part thereof to be to the King's Majesty his Heires and Successors, one other third part to him that will sue for the same, and the other third part to the Poore of the Parish where such Booke or Bookes shalbe found, to be recovered by Actiō of Debt or Bill Plaint or Informatiō in any of the King's Majesties Court of Recorde, wherein no Excoyne Protectiō or Wager of Lawe shalbe admitted or allowed, and the said Booke to be burned: And that it shall be lawfull for any two Justices of Peace within the Limites of their Jurisdictiō or Authority, and to all Mayors Bayliffes and Chiefe Officers of Cities and Townes Corporate in their Liberties, from tyme to tyme to search the Houses and Lodgings of every Popish Recusant convict or of every person whose Wife is or shall be a Popish Recusant convict, for Popish Bookes and Reliques of Popery; And that if any Alter Pix Boudes Pictures or such like Popish Reliques or any Popish Booke or Bookes shall be found in their or any of their Custodie, as in the opinion of the said Justices Mayor Bayliffe or Chiefe Officer as aforesaid shall be thought meete for such Recusant as aforesaid to have or use, the same shall be openly defaced and burnt, if it be meete to be burned; And if it be a Crucifix or other Relique of any price, the same to be defaced at the Ocell Quarter Sessions of the Peace in the County where the same shall be found, and the same soe defaced to be restored to the Owner againe.

XVI.
Armes, &c. (except
for necessary
Defence) of Popish
Recusants convict
shall be seized by
Justices of Peace.

And be it also enacted by the Authority aforesaid, That all such Armour Gunpowder and Munition of whatsoever kind as any Popish Recusant convict within this Realme of England hath or shall have in his House or Houses or elsewhere, or in the Hande or Possession of any other at his or their dispositiō, shalbe taken from such Popish Recusant or others which have or shall have the same to the use of such Popish Recusant, by Warrant of Four Justices of Peace, at their Ocell or Quarter Sessions to be holden in the same County where such Popish Recusant shalbe resident; (other then such necessary Weapons as shalbe thought fit by the said Four Justices of Peace to remaine and be allowed for the Defense of the person or persons of such Recusant, or for the Defense of his her or their House or Houses); And that the said Armour and Munition so taken shalbe kept and maintained at the Cost of such Recusant in such Place as the said Four Justices of Peace at their said Sessions of the Peace shall see downe and appointe.

XVII.
Penalty on any
disturbing or
obstructing Armours
Impment, &c.

And be it further enacted by the Authority aforesaid, That if any such Recusant having or which shall have any such Armour Gunpowder and Munition or any of them, or if any other person or persons which shall have any such Armour Gunpowder and Munition or any of them to the use of any such Recusant, shall refuse to declare or manifest unto the said Justices of Peace or any of them what Armour he shalbe or they have or shall have, or shall 't hinder or disturbe the delivery thereof to any of the said Justices or to any other person or persons authorised by their Warrant to take and seize the same, then every such person so offending contrary to this Statute in this behalf shall forfeit his house to the King's Majesty his Heires & Successors his & their said Armour Gunpowder and Munition, and shall also be imprisoned by Warrant of or from any Justice of the Peace of such County by the space of Three Months without Baile or Mainprize.

XVIII.
Armes, &c. shall be
kept and reserved
at Request of
Recusant.

And yet nevertheless be it enacted by the Authority aforesaid, That notwithstanding the taking away of such Armour Gunpowder and Munition, the said Popish Recusant shall and may be charged with the maintaining of the same, & with the buying gridding & maintaining of Horses & other Armour and Munition, in such sort as other his Majesties Subjectes from tyme to tyme shalbe appointed and commanded, according to their several Abilities and Qualities; And that the said Armour and Munition at the Charge of such Popish Recusant for them and as their owne provision of Armour and Munition, shalbe shewed at every Muster Show or Use of Armour to be had or made within the said County.

XIX.
Penalty for
obstructed
Comme.

Provided always, That nothing this Acte nor any thing therein contained shall extend to take away or shalbe the Authority or Jurisdictiō of the Ecclesiasticall Consens, for any Cause or Matter; but that the Chancellours of his Majesties his Heires and Successors in causes Ecclesiasticall for the tyme being Archbishops Bishops and other Ecclesiasticall Judges may doe and provide as before the making of this Acte they lawfully did or might have done; Any thing in this Acte to the contrary in any wise notwithstanding.

CHAPTER VI.

AN ACTS to enable all his Majestie loving Subject^s of Englands and Wales to trade freely into the Dominions of Spaine Portugall and France.

WHEREAS divers Merchant^s have of late obtained from the King^s most excellent Majestie under the Great Seale of England a large Charter of Incorporation for them and their Companie to trade into the Dominions of Spaine and Portugall, and are also moore earnest suitors to obtaine the like from his said Majestie for France, whereby none but themselves and such as they shall thincke fit as being mere Merchant^s shall take benefit of the said Charter, disabling therewith all others his Majesties loving Subject^s of this Realme of England and Wales, who during all the tyme of her late Majesties Warren were in divers respects greatly charged for the Defence of their Prince and Countrey, and therefore ought indifferently to enjoy all the benefit of this most happy Peace, and also debarring them from that free enlargement of comon Traffique into those Dominions which others his Majesties Subject^s of his Realme of Scotland and Ireland doe enjoy, to the manifest impoverishing of all Owners of Ships Masters Mariners Fishermen Clothiers Tuckers Spinners and many thousand^s of all sortes of Handicraftsmen besides the decrease of his Majesties Customes Subsidies and other Impositions, and the ruine and decay of Navigation, together with the raising of the prices of our Woollen Cloth Corne and such like Commodities arising and growing within this his said Majesties Realme of England, and the hindring of all French and Spanish Commodities, by reason of the insufficiency of the Merchant^s they being fewe in number, and not of Abilitie to keepe the great number of our Ships and Sea-faring men awake, and to wint the great store of Commodities which this his Majesties Dominion of England durh yeelde; And by means that all Owners and Mariners with divers others (if these Incorporations should continue) shalbe cut of from their ordinarie means of maintenance and pursuing their Estates; And finally by reason that all French and Spanish Commodities shall be in a few mens hands, in respect whereof, as also for many other manifold Inconveniences growing thereby much hurt and prejudice must needs redound to all his Majesties loving Subject^s of this his Highnes Realme of England, if reformation for the prevention of so great an evill be not had in due tyme: For Remedy whereof, Be it enacted by the King^s most Excellent Majestie, the Lordes Spuall and Temporall and Councile in this present Parliament assembled, and by the Authoritie of the same, That it shall and may be lawfull to and for all his Majesties Subject^s of this his [his'] Highnes Realme of England and Wales from henceforth at all tymes to have free libertie to trade into and from the Dominions of Spaine Portugall and France in such sort and in as free manner as was at any tyme accustomed thence the beginning of this his Highnes most happy Reigne in this his Realme of England, and at any tyme before the said Charter of Incorporation was granted, paying to the King^s most excellent Majestie his Heires and Successors all such Customes and other Duties as by the Lawes and Statut^s of this Realme ought to be paid and done for the same; The said Charter of Incorporation or any other Charter Grante Acte or any thing else heretofore made or done or hereafter to be done to the contrary in any wise notwithstanding.

Charter of Incorporation to certain Merchant^s, to trade with Spaine, Portugall, and France.

All Subjects may trade with these Nations, as freely as before such Incorporation.

Provided always, That this Acte or any thing therein contained shall not be of force to enable or give libertie to any person or persons to goe over Seas without Licence, who by the Lawes and Statut^s of this Realme, or by any Statute hereafter to be made, shalbe restrained from going beyond the Seas without Licence; Any thing to the contrary notwithstanding.

II. Provided as to Shipp Departure from the Realm.

CHAPTER VII.

AN ACTS to reforme the Multitudes and Misbehaviour of Attorneys and Solicitors at Lawe, and to avoide sundrie unnecessary Suit^s and Charges in Lawe.

FOR that through the Abuse of sundrie Attorneys and Solicitors by charging their Client^s with excessive Fees and other unnecessary Damages, such as were not so ought by them to have bene employed or demanded, whereby the Subject^s growe to be over much burthensd, and the practice of the just and honest Sergeant and Counsellor at Lawe greatly scandalized, and for that to waken the private Gaine of such Attorneys and Solicitors the Client is otherwise extraordinarily delayed: Be it enacted by the authoritie of this present Parliament, That no Attorney Solicitor, or Servant to any, shalbe allowed from his Client or Master of or for any Fee given to any Sergeant or Counsellor at Lawe, or of or for any summe or stampe of Money given for Copies to any Clarke or Clerk or Officer in any Court or Count^s of Records or Writs, unless hee have a Ticket subscribed with the Hand and Name of the same Sergeant or Counsellor Clarke or Clerk or Officer aforesaid, testifying howe much hee hath

Attorney shall not be allowed Fees, &c. to Clerk, or for Officer Copies, without a Ticket from Counsel, &c.

¹ An enormous Repetition to the Roll. G. ends.